



POLICE DEPARTMENT

March 20, 2026

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202409512 (Incident Date: September 22, 2024) regarding Police Officer Ryan Deoliveiravargas, Tax No. 977119 (PODS Case No. C-036654) and Police Officer Shahadat Anik, Tax No. 978860 (PODS Case No. C-036655)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Ryan Deoliveiravargas and Police Officer Anik Shahadat and determined that no disciplinary action is warranted.

Based on the totality of the circumstances, Police Officer Deoliveiravargas was within his discretion to detain and remove the complainant to the command to identify him and issue summonses. The complainant refused to provide his identification after several requests from the Officers. Furthermore, Police Officer Lopezbeato observed the individual drive the vehicle, double park, and exit the vehicle. Both she and Police Officer Deoliveiravargas observed the obstructed plate. Therefore, a summons was properly issued for the violation of NYS VTL 402-B (obscured and obstructed license).

Additionally, it has been determined that the force used by Police Officer Anik was reasonable. Body-Worn Camera footage demonstrates the chaotic situation involving a crowd that was forming and an individual's continued disregard for the officers' commands to step back. This individual was told numerous times to step back, while officers were in a kneeling and vulnerable position, and attempting to gain control of the complainant. At one point, the individual was yelling and standing right over Police Officer Anik's head. This caused another officer to stand and again order the individual to step back. Officer Anik also stood up from the ground and physically pushed the individual back and away from the scene.

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Therefore, based on the foregoing, the Police Commissioner directs that no disciplinary action be imposed against Police Officer Deoliveiravargas and Police Officer Anik for the alleged misconduct.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office